

		the scope of an arbitration clause “turns on whether the . . . claims are ‘rooted’ in the contractual relationship between the parties . . .” (Ahern v. Asset Management Consultants, Inc. (2022) 74 Cal.App.5th 675, 692 [citation omitted].) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ claims ‘must have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (Rice v. Downs (2016) 248 Cal.App.4th 175, 188 [citations omitted].) The CSA governs the provision of the wireless technology and services received as part of the enrollment in a Bluelink Connected Services subscription. Plaintiff’s complaint alleges the vehicle contained defective components and that HMA installed remanufactured and/or reconditioned components that were not of the same quality as the original equipment manufacturer components. (Compl. ¶ 38.) Plaintiff further alleges Defendant installed components which it knew were defective and would not correct the mechanical issues exhibited in the vehicle. (Compl. ¶ 38.) As such, the Connected Services are not at issue in this action, and Plaintiff’s claims do not arise out of nor have their roots in the relationship created by the CSA. As such, the arbitration agreement in the CSA does not encompass Plaintiff’s claims. Tentative Ruling: The Court DENIES Defendant Hyundai Motor America’s motion to compel arbitration. Plaintiff to give notice.
13	Melchor vs. Kia America, Inc. 2025-01493559	1. Demurrer to Complaint 2. Case Management Conference The Demurrer was filed on 11/12/25 and Plaintiff’s opposition was filed on 5/19/26. As of 5/27/26, Defendant has not filed its reply brief, which was due on 5/22/26. Therefore, it is unclear whether Defendant is maintaining the motion. No later than 6/5/26, counsel for the parties are ordered to meet and confer via telephone or videoconference regarding whether this motion should remain on calendar. No later than 6/8/26,

		counsel for Defendant shall file and serve a status update, not to exceed two pages, describing the parties' meet and confer attempts and stating whether the motion should remain on calendar. The parties are encouraged to resolve this issue informally if possible. Tentative Ruling: Defendant Kia America, Inc.'s Demurrer to Plaintiff's Complaint is CONTINUED to 6/15/26 in this Department.
14	Plane Fetch LLC vs. Firm Foundation Aviation, LLC 2025-01457617	Motion for Continuance of Trial Defendant moves to continue trial in this action pursuant to California Rules of Court, rule 3.1332. "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain." (Cal. Rules of Ct., rule 3.1332(a).) "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance" (Cal. Rules of Ct., rule 3.1332(c).) "In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include: . . . [¶] (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and [¶] (11) Any other fact or circumstance relevant to the fair determination of the motion or application." (Cal. Rules of Ct., rule 3.1332(d).) The court finds good cause exists to continue trial, which is currently set for 8/03/26. A Motion to Consolidate is scheduled to be heard on 9/9/26, in department N18 to consolidate this action with Case No. 30 2025-01457567-CU-BC-NJC. If that motion is granted, this case will be transferred to department N18 and no further action will be required from this Court. Tentative Ruling: Defendant Firm Foundation Aviation, LLC dba Foundation Aviation's Motion for Continuance of Trial is GRANTED.